

September 8, 2025 Shelter Hearing
25JU04261
In The Matter of Al-mira Davis

September 5, 2026

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Goldstein: - 00:01 Go ahead.

Ricciado: - 00:02 Good afternoon, you, Honor. The state calls case number 25JU04261. This is the time set for a shelter hearing from DHS. We have Ms. Galaher present today in the courtroom. We have the youth present today in the courtroom as well, with her attorney, Mr. Lathke, who's also present today in the courtroom. Don't believe we have mother present today, but we do have Ms. Mahoney appearing today on behalf of mother in person. I don't believe we have father present today due to issues with getting him to appear via WebEx from the jail. But we do have Ms. Moales present in person on behalf of father today from Casa. We have Ms. Fong in the courtroom today. We also have, from the DA's office, DDA Willyamson in the courtroom today.

Ricciado: - 00:42 We also have the resource parents present today in the courtroom, the maternal great aunt and uncle. And my name is Nick Ricciado. I'm here today on behalf of the state, and I'm appearing today for AAG Wadia. Thank you.

Goldstein: - 00:53 Apparently, mom is called into the court, not to the court hearing, so not quite sure how we can rectify that.

Clerk: - 01:00 She was told of the need to be here in person.

Goldstein: - 01:04 Hopefully, that's what Ms. Robertson is telling her in the back. What are you asking for, Mr. Ricciado?

Ricciado: - 01:11 1 / 3:34 PM Well, you, Honor, today. DHS is asking for the court to grant a temporary custody of this child. This child was taken in protective custody over the weekend without a court order due to imminent threat of severe harm to this child. The agency is asking the court to find that jurisdiction is appropriate for the uccjda. The child has lived in Oregon for the last six consecutive months. Reasonable efforts have been made to prevent the need for removal. And diligent efforts have been made to notify parents and grandparents of today's hearing, along with diligent efforts to place the child with relatives. This child is placed in a relative placement. This is substitute out of home placement. The agency would ask the court to find as appropriate as the least restrictive placement.

- Ricciado:** - 01:53 At this time, the agency does not have the information to believe that this is an Indian child for the state or federal Indian Child Welfare Act. And if this court does grant temporary custody of this child of dhs, the agency would ask that this court set a jurisdiction trial within 60 days of filing of the petition today. Lastly, you, Honor, the state at this time would move to enter the fact, findings, reassessment summary and the PCR that have been filed for today's hearing.
- Goldstein:** - 02:15 Thank you so much. States one, the protective custody report states two, the fact finding consisting of 207 pages states through the ODHS assessment summary consisting of 78 pages. Ms. Gallagher, please raise your right hand to be sworn. Speaker 4 - 02:34 Yes.
- Clerk:** - 02:34 Thank you. For the record, please state Victoria Gallagher V I C T O R A G A L L A G H E R.
- Goldstein:** - 02:40 All right, you may be seated. I did have an opportunity to review the protective custody report. What else would you like me to know?
- Gallagher:** - 02:46 Just at this time, we are requesting temporary custody with placement and substitute care. Current placement is maternal great aunt and uncle. Father is currently incarcerated on charges related to the assault and strangulation of this child. He was already out on a release agreement due to prior charges related to the physical abuse of this child from April of this year. And during this most recent incident, numerous witnesses observed father physically abusing the child. And as a result, there were multiple calls made to 911. Mother is aware of the hearing as well as ODHS intervention. She was not cooperative in speaking with the agency or planning for her child while at the hospital. Did not really appear to understand the safety concerns. Mother also currently has a warrant for her arrest related to pending charges of theft 1 and possession of mass.
- Gallagher:** - 03:33 Given the current circumstances, we believe that placement in the home of the parent is not appropriate and that substitute care would be the appropriate placement. We don't have any reason to know that ICWA applies. Both parents have either denied ancestry or at times, father has indicated he does not know. Speaker 4 - 03:47 All right,. Speaker 1 - 03:50 Ms. Monesy, anything? No, Ms. Moales. Speaker 5 - 03:55 Your Honor, I would enter a general denial on behalf of father. Ask for Walker to be appointed for

future dates. Speaker 1 - 04:01 3:34 PM Shalotsky. Speaker 6 - 04:03 Your honor, defer to the court on placement. But Charles does want to be allowed contact with mother. She reported to me that she recently had. Speaker 1 - 04:12 Hold one second. That's a deputy. He might be getting dad. All right. We do have father, so I'm going to take a quick jump back. Really quick. Ms. Galaher, again, the exhibits have been received. What would you like me to know? Go ahead. Speaker 2 - 05:17 Good afternoon, your honor. The state calls case number 25 ju04261. This is the time set for a shelter hearing from DHS. We have Ms. Galaher present. Speaker 1 - 05:32 Her in that substitute care. Align for visitation. I'll note that the court. I will be appointing a cost on this case. Speaker 6 - 05:44 Now, she did have overnight contact with mom last weekend. Speaker 1 - 05:53 All right, we do have father, so I'm going to take a quick jump back. Really quick. Ms. Galaher, again, the exhibits have been received. What would you like me to know? Speaker 3 - 06:02 We are requesting Temporary custody today with placement and substitute care. The current placement is police like the maternal great aunt and great uncle. Father is currently incarcerated on charges related to the assault and strangulation of his child. He was already out of custody on a release agreement due to prior charges. Also related to the physical abuse of this child from April of this year. During the most recent incident, there were numerous witnesses that observed father physically assaulting the child and as a result Multiple calls to 911 were made. Mother is aware of the agency's involvement. She is aware of today's hearing. Over the weekend. She was not cooperative or engaged when trying to. When the agency was trying to contact her and speak with her. She wouldn't participate in planning for her child at the hospital and doesn't appear to understand the safety concerns. Speaker 3 - 06:55 She also currently has a warrant for her arrest and she has pending charges for possession of meth and theft. 1. This time we don't leave an in home plan with either parent. It's appropriate. We also don't have any reason to believe that ICWA applies. Speaker 1 - 07:10 All right, go ahead, Mr. Wotisky. Sorry about that. Speaker 4 - 07:13 No problem. Speaker 6 - 07:14 Again, daughter is requesting to maintain contact with mother. She would also like contact with father but she understands that the court is not able to permit that right now. She did have overnight contact with mom last weekend where they were able to go and help get Charles hair done. Apparently everything was all well and everybody

had a good time. So she is requesting to be able to have robust contact with mom. We are also requesting notice if the agency is wanting to change placement. And Charlie's also wanting to be able to go back to father's house, which is a rented apartment to make sure that she's able to get her belongings from that house in case that house is barred from father or if the eviction proceedings or anything like that were to be brought. Speaker 4 - 08:11 Thank you. Speaker 1 - 08:11 Thank you councilman. Speaker 4 - 08:14 Anything, your honor. Speaker 1 - 08:16 Ms. Willyamson, resource parents, anything you guys want me to know today? Speaker 4 - 08:29 Yes. Oh my God. Speaker 1 - 08:33 You're good to see it's more comfortable. It's nerve wracking. Speaker 4 - 08:39 I guess this duration of this placement at this juncture. I'm concerned right now. Speaker 3 - 08:48 I'm sorry. Speaker 4 - 08:52 I'm concerned about further child at this juncture with regards to first of her mental health. One because I know DHS has some order, well being order against her right now as far as her mental health with certain restrictions for that regarding that and barring her mom for talking to her because of that also, which is one of my concerns at this juncture about how quickly that gets resolved and when does that get resolved And I guess the other one is also asking with her continuing her education to move forward as far as her going to school way out here in Hillsboro and that's maybe way out in Shoutdale. It was kind of concerned for me also about maybe go back and forth but over a two hour period in any given day for that in my concern. Speaker 1 - 09:42 Okay, thank you. So we are here today for a shelter hearing leave Ichor oracle apply priors were notified resource parents are in attendance. We don't have any grandparents intends. The court does have jurisdiction under the UCC JEA to make child custody determination. We'll consider the agency to have made reasonable efforts to prevent or eliminate need for protective custody. Child's currently placed out of home. This is the least strict most family like setting agency has made diligent efforts towards relative placement. I will be appointing a CASA on this case. Should mother apply qualify MPD will be appointed to represent mother. Father need not apply since he is in custody automatically qualifies. Hillsborough Law Group will be appointed to represent father. Speaker 1 - 10:24 Child need not apply Ride Olig and associates will be appointed to represent the child at this time the child will be placed in the Temporary custody of ODHs for care placement and supervision and substitute care. Noting visitation

I'm noting is after consultation with the child. It sounds like she wants those visits but I want to give her a little bit of personal agency in how those visits are set up and how they look. If she does want visitation alone the expectation would be you know the standard within 48 hours of today essentially. Speaker 3 - 10:52 Sorry. I believe the grandmother has joined the hearing by phone. Speaker 1 - 10:56 Is that maternal or paternal? Grandma, is there anything you want me to know today?

Speaker 7 - 11:05 No, I. Oh, sorry. I was having problems getting logged in. I missed the beginning. Spending minutes trying to get logged in. I missed the beginning. I just got logged in a little bit ago. I don't know what I missed. Speaker 1 - 11:19 I appreciate that you're here. The state has requested that Almira be made award of the court take temporary jurisdiction of Almira and continue her placement out of home with the relatives. And that is effectively what we are doing. We're continuing her in that substitute care allowing for visitation. I will note that the court supports any criminal no contact order with father allow for contact. Per the Oregon Department and Services this case is being assigned to Judge Rey. Judge Rey is across hall courtroom 110. Are the attorneys able to come back on October 14th at 9:30 and 10? October 14th at 9, 30 and 10. Speaker 7 - 12:08 Are you asking me if I'm able. Speaker 3 - 12:09 To come back it? Speaker 1 - 12:10 No, just the attorneys. Yes. Speaker 5 - 12:12 Yes. Speaker 2 - 12:13 Oh, networks rer. Speaker 4 - 12:14 Thank you. Speaker 1 - 12:15 All right. Trial, if necessary, is going to be October 31st at 9am there may be conflicts at dates. I mean, I sent a CJ there already. If that's the case, I'll let you take that up with Judge Rey when you get to the 14th. Dad, I recognize you're presently in custody. If you are still in custody when we get to October 14, arrangements will be made for you there to appear remotely like you are today or you'll be brought over. However, if you are out of custody, you are going to have to come to court. My guess is the agency will probably be delivering a subpoena to you in the next. My guess is 24 hours. Mr. Shaddo, do you have any questions? Speaker 2 - 12:51 Just to confirm, is that October 31st? Speaker 1 - 12:52 Correct. Speaker 2 - 12:53 Thank you, Honor. Speaker 1 - 12:54 Ms. Shalotsky? Seaker 2 - 12:55 No, thank you, Ms. Moni. Speaker 1 - 12:57 Ms. Moales. Speaker 5 - 12:58 Your Honor, I wanted to clarify that you were recommending that contact in Dad's criminal order be

per dhs. Speaker 1 - 13:05 Yeah. So this court supports any criminal no contact order with father allow for contact per ODHs. So should he have one, my hope is that contact is allowed per dhs. Speaker 5 - 13:15 Okay, it sounded like the court supports no contact. Speaker 1 - 13:19 No, the court. I will rephrase this to make sure it doesn't look like I supported no contact works. I do support contact per ODHs. All right, again, this will be Judge Reaney's case. She will see you all back on the 14th at 9:30am thank you very much. Speaker 4 - 13:33 Thank you.